

Near Cash

Legal & Compliance Documentation Package

Risk-Hardened v16 — Public-Facing and Internal/Admin Documents

Effective date: 28 September 2026

Operator: Near Cash (individual operator: Sumit Ghosh)

West Bengal, India · nearcash.info@gmail.com · nearcash.site

This document compiles the documentation contained in the v16 risk-hardening package. It is a documentation record. It is not a legal opinion or a certification of compliance.

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Legal Centre

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Operator: Near Cash (individual operator: Sumit Ghosh) • West Bengal, India • nearcash.info@gmail.com

This Legal Centre is the central directory of the public-facing policies and user protections of Near Cash.

Public Policies

- **Privacy Policy** — personal data, location, retention and user rights.
- **Terms of Use** — platform role, user obligations and prohibited conduct.
- **Financial Crime & Acceptable Use Policy** — prohibited financial crime and abuse.
- **User Safety & Meetup Policy** — public meetups, credentials and safety.
- **Community Guidelines** — respectful and lawful conduct.
- **Report & Abuse Policy** — reporting, triage, blocking and enforcement.
- **Grievance & Dispute Policy** — complaint handling and escalation.
- **Cookie & Analytics Notice** — cookies, local storage and analytics.
- **Account & Data Deletion** — deletion requests and exceptions.
- **Intellectual Property & Copyright** — intellectual property ownership and complaints.
- **Security & Responsible Disclosure** — vulnerability reporting.

Compliance boundary. These documents constitute an implementation-ready policy framework. They are not a legal opinion and do not guarantee compliance with every applicable law. Their applicability depends on the final legal entity, business model, user base, data flows, jurisdictions, monetisation and future features. Indian legal review should be obtained before any commercial launch or material expansion.

Regulatory Framework Considered

Framework	How it affects Near Cash
Digital Personal Data Protection Act, 2023 and DPDP Rules, 2025	Personal-data processing, notices, consent and other lawful bases, security, rights, breach response and governance, subject to the commencement and applicability of individual provisions.
Information Technology Act, 2000 and applicable IT Rules	Online-service and intermediary obligations, handling of unlawful content, grievance mechanisms and reasonable safeguards, where the service falls within the relevant definitions.
Consumer Protection Act, 2019 and E-Commerce Rules, where applicable	Consumer-facing disclosures, grievance handling and controls against unfair and deceptive practices, if Near Cash falls within the applicable e-commerce scope.
CERT-In Directions under s.70B	Cyber-incident reporting, point-of-contact, logging and preservation obligations that may apply to the operator.
Other Indian laws	Criminal law, contract, intellectual property, telecommunications and SMS, tax, employment, advertising and sector-specific requirements may apply, depending on the actual operation.

Risk and Applicability Notice

This Legal Centre is a product-specific framework. It is not a certification that every law applies in the same manner, or that every legal obligation has been satisfied. The operator must reassess the framework whenever Near Cash changes its entity, payment model, data collection, age range, geographic scope, business model, vendors or user-generated-content functionality.

The current framework takes into account the following: the Digital Personal Data Protection Act, 2023 and the Digital Personal Data Protection Rules, 2025; the Information Technology Act and the applicable intermediary rules; consumer and e-commerce requirements, where applicable; cyber-security and incident-reporting obligations; contract, criminal, intellectual-property and tax requirements; and payment and financial regulation, if the product ever moves beyond its current non-custodial model.

Privacy Policy

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash is designed around data minimisation, transparent use of location and account data, and user control.

Important launch status. This notice describes the current India-focused configuration supplied by the operator. The service is currently operated by Sumit Ghosh, as an individual, under the name "Near Cash". It is not represented as an incorporated company and has no Corporate Identification Number (CIN) or Goods and Services Tax Identification Number (GSTIN). The effective date of this notice is 28 September 2026. A lawyer should verify the final notice against the deployed data flows before any material public scaling.

1. Scope

This Privacy Policy explains how Near Cash may process digital personal data when you use its website, web application, account, matching, messaging, reporting, safety and support features.

2. Data We May Process

- **Account data:** display name, phone number used for authentication, account identifiers and account status.
- **Matching and location data:** precise device location may be collected where location permission is granted, so that the service can perform nearby matching. The service is designed to display an approximate area, rather than a precise home address, to other users. The operator states that it does not retain location history.
- **Listings and interaction data:** cash-need and availability details, approximate area, match and thread identifiers, messages, confirmations, ratings, reports and blocks.
- **Security and technical data:** IP and network information, timestamps, authentication and session records, security events, device and browser information where technically collected, and audit and observability records.
- **Product analytics:** limited pseudonymous and operational analytics used to understand reliability and product flows.

3. Purposes of Processing

Personal data is processed for the following purposes:

- to create and secure accounts;
- to provide nearby matching and communication;
- to prevent abuse, fraud, harassment and unauthorised access;
- to operate reporting, blocking, ratings and safety controls;
- to maintain reliability, security, debugging and audit records;
- to comply with applicable law, lawful requests and legal obligations; and
- where required, to obtain consent for a specified processing purpose.

4. Data Minimisation and Location

Near Cash may request precise device location only where needed for nearby matching. Other users are shown an approximate area rather than a precise home address. Near Cash does not intentionally retain a historical location trail. Users shall not be required to publish a home address.

5. Sharing and Service Providers

Near Cash does not sell personal data and does not use advertising or behavioural-tracking partners. The current deployment uses Cloudflare services for infrastructure and security, and Cloudflare analytics, together with Near Cash administrative analytics. Any provider that technically processes personal data as part of the service must be documented in the internal vendor and data inventory and handled in accordance with applicable law and contractual and security requirements. Data may also be disclosed where required by law, court order, regulator, CERT-In or a law-enforcement authority.

6. Retention

Operational data should be retained only for as long as necessary for the stated purpose, subject to legal, security, fraud-prevention, dispute and incident-response requirements. The internal Data Retention Schedule is the controlling operational document.

7. User Rights and Choices

Subject to applicable law and to the commencement and application of the relevant provisions, users may have rights concerning access to information about processing, correction and update, erasure, withdrawal of consent where consent is the basis of processing, grievance redressal and nomination. Requests should be made through the published privacy and grievance channel. Certain records may need to be retained where required by law, or where necessary for security, fraud prevention or legal claims.

8. Security

Near Cash uses access controls, authentication protections, rate limits, security headers, logging and operational monitoring appropriate to the service. No internet service can guarantee absolute security. Suspected vulnerabilities should be reported through the Security page.

9. Children

Near Cash is intended only for users aged 18 years or older. The service should not knowingly create or maintain accounts for persons under 18. If the intended audience or age policy changes, the data-protection and safety design must be re-reviewed before that change is enabled.

10. Changes

Material changes will be reflected in the published notice with an updated effective date. Continued use after an applicable update may be subject to the updated terms, where legally permitted.

11. Contact and Grievance

Operator: Near Cash (individual operator: Sumit Ghosh).

Privacy and grievance contact: nearcash.info@gmail.com.

Business address: Kabiraj Mess, Barbaria Main Road, Barbaria, Barasat, West Bengal 700126, India.

State: West Bengal, India.

12. Privacy Risk Controls

- **Purpose limitation:** location is used for nearby matching and related safety and security functions, and not for advertising or sale.
- **Location minimisation:** Near Cash stores the current matching coordinates needed by the service and does not intentionally build a historical movement trail. Users may request location removal through the data controls.
- **Access control:** exact location is not intended to be displayed to other users as a home address or an exact map point.

- **Provider transparency:** Cloudflare infrastructure, security and analytics services are used in the current deployment. If SMS or OTP delivery is enabled through a provider such as Twilio, that provider must be recorded in the internal vendor inventory and this notice updated as necessary.
- **Change control:** any new collection of identity, financial, biometric, contact, precise-location-history or advertising data requires a privacy review before release.
- **Deletion:** users may request deletion of their account and location data. Records that must be retained for security, fraud prevention, disputes or legal obligations may be retained only as permitted and necessary.

Terms of Use

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

These Terms govern the use of the Near Cash discovery and matching service.

Current operating model. Near Cash is a discovery, matching and coordination service. It is not a bank, payment system, wallet, escrow service, money transmitter or custodian. Participants are responsible for any direct exchange that they independently choose to conduct. If Near Cash ever processes, holds, settles or routes funds, these Terms must be replaced or re-reviewed before that feature is launched.

1. Acceptance

By accessing or using Near Cash, you agree to these Terms and the linked policies. If you do not agree, you must not use the service.

2. Eligibility and Account Integrity

Near Cash is intended for users aged 18 years or older. You must satisfy the applicable legal-capacity requirements and provide accurate information. You must not impersonate another person, create deceptive accounts or share authentication credentials.

3. Platform Role

Near Cash helps users discover potentially relevant nearby participants and coordinate communication. Near Cash does not guarantee that a match is genuine, solvent, safe, lawful, available or suitable. It does not verify the underlying funds and does not independently complete any exchange between participants.

4. Prohibited Conduct

You must not use Near Cash for money laundering, terrorist financing, fraud, scams, proceeds of crime, tax evasion, sanctions evasion, theft, extortion, bribery, gambling where unlawful, trafficking, impersonation, harassment, threats, doxxing, unauthorised data collection, credential theft, malware, or any other unlawful purpose. You must not use the platform to conceal the source, ownership or destination of funds.

5. User Safety

You should use public, well-lit locations; not disclose your home address; not share OTPs, UPI PINs, passwords or banking credentials; and leave immediately if you feel unsafe. Please refer to the User Safety & Meetup Policy.

6. Reports, Blocks and Enforcement

Near Cash may investigate reports, restrict visibility, suspend or terminate accounts, preserve relevant records, or cooperate with lawful authorities where reasonably necessary to protect users, the service or the public.

7. User Content and Communications

You remain responsible for the content you submit. You grant Near Cash only those permissions reasonably necessary to host, transmit, moderate and secure that content for the purpose of operating the service. You must not submit sensitive personal information belonging to another person without a lawful basis.

8. No Financial or Transaction Guarantee

Near Cash does not guarantee transaction completion, cash availability, identity, authenticity, safety or financial outcome. Users decide independently whether to proceed.

9. Intellectual Property

Unless otherwise stated, Near Cash branding, software, interface, documentation and original content belong to the operator or its licensors. You may not copy, reverse engineer, scrape, resell or misuse the service, except as permitted by law.

10. Disputes and Grievance

Complaints should first be submitted through the published grievance and reporting channel at nearcash.info@gmail.com. Nothing in these Terms removes any right that cannot lawfully be excluded. These Terms are intended for the India-focused service and should be reviewed by Indian counsel before any material public scaling or any change in the transaction or payment model.

11. Availability and Changes

The service may change, pause or discontinue features for security, maintenance, legal or operational reasons. Material changes to these Terms will be published with an updated effective date where required.

12. Contact

Operator: Near Cash (individual operator: Sumit Ghosh).

Official contact: nearcash.info@gmail.com.

13. Risk Allocation and Prohibited Reliance

- Users must independently verify the person they meet, the amount, the physical cash and any external payment details before proceeding.
- Near Cash does not verify the ownership, source, authenticity, legality or availability of funds, and does not act as an agent for either participant.
- No user may represent that Near Cash guarantees a transaction, endorses a participant, verifies funds or provides financial advice.
- Users must not use Near Cash to arrange concealed, structured, nominee, proxy or otherwise deceptive transactions.
- Near Cash may apply proportionate safety measures, including warnings, temporary restrictions, removal of listings, account suspension or termination, and preservation of relevant records, where justified.
- Nothing in these Terms excludes any right or liability that cannot lawfully be excluded, or limits the operator's obligations under applicable law.

Financial Crime & Acceptable Use Policy

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash is intended for lawful and legitimate use only.

Zero Tolerance for Unlawful Use

Users must not use Near Cash for money laundering, terrorist financing, fraud, scams, proceeds of crime, tax evasion, sanctions evasion, theft, extortion, bribery, unlawful gambling, trafficking, or the concealment of the source, ownership or destination of funds.

No Concealment or Structuring

Users must not use matching, messaging or meetups to disguise beneficial ownership, the source or destination of funds, tax liability or criminal proceeds. Users must not coordinate transactions designed to evade legal or reporting obligations.

Fraud and Impersonation

False identities, forged documents, fake listings, phishing, credential theft and deceptive payment instructions are prohibited.

Enforcement

Near Cash may block, suspend or terminate accounts; restrict listings; preserve relevant evidence; and make disclosures where required or permitted by law.

No Financial-Service Claim

Near Cash does not provide banking, payment, money-transfer, escrow, custody or settlement services. This policy must be re-reviewed if the product changes.

Additional Prevention Controls

- **No anonymous laundering service:** users may not use the service to disguise the source, ownership, destination or beneficial ownership of funds.
- **No third-party or proxy exchange:** users must not arrange exchanges on behalf of unknown persons, or for compensation, where this would facilitate unlawful activity.
- **No suspicious instructions:** requests involving concealment, splitting, rapid repeated matching, false explanations, fake identities or unusual pressure may be restricted or investigated.
- **Evidence preservation:** Near Cash may preserve relevant account, listing, report and security records where reasonably necessary for abuse prevention, disputes or lawful requests.
- **Escalation:** credible indications of serious unlawful activity may be escalated to the appropriate authorities where legally permitted or required.

User Safety & Meetup Policy

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Safety controls form part of the Near Cash product; however, no online platform can eliminate all in-person risk.

Public Meetups

Use a busy, well-lit public place. Do not meet at a private residence or disclose a home address. Inform a trusted person of where you are going.

Protection of Credentials

Never share OTPs, UPI PINs, card PINs, passwords, recovery codes or private keys. Near Cash will never ask for your banking PIN.

Transaction PIN

Use the platform's temporary meetup or transaction PIN only for the intended confirmation flow. Never disclose an OTP or account authentication code as proof of payment.

Stop if Unsafe

If a participant pressures, threatens, follows, deceives or otherwise makes you uncomfortable, end the interaction and report or block the account.

Emergencies

In the event of immediate physical danger or suspected crime, contact local emergency services or law enforcement. Near Cash is not an emergency-response service.

Additional Meetup Controls

- Meet only after independently confirming the other participant and the intended amount.
- Prefer staffed public locations with CCTV or security, where lawful and appropriate, and avoid secluded locations.
- Inform a trusted person of your planned location and expected return time.
- Do not carry or display unnecessary personal documents, passwords, PINs or sensitive financial information.
- Do not allow another person to pressure you into changing the amount, destination, payment method or meeting location at the last moment.
- Never treat the Near Cash transaction or meetup PIN as proof that funds are genuine or that a payment has settled.

Community Guidelines

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash depends on honest, respectful and lawful participation.

Be Truthful

Use accurate information and do not impersonate another person.

Respect Privacy

Do not publish another person's phone number, address, identification documents, financial credentials or other private information.

No Harassment

Threats, intimidation, sexual harassment, hate-based abuse, stalking, extortion and repeated unwanted contact are prohibited.

No Manipulation

Do not spam, create fake demand, artificially inflate reputation, manipulate ratings or operate deceptive duplicate accounts.

No Unlawful Content

Content facilitating fraud, money laundering, illegal gambling, theft, trafficking or other unlawful activity is prohibited.

Enforcement

Content or accounts may be removed or restricted where reasonably necessary to protect users, comply with law or enforce these rules.

Additional Trust Controls

- Use only truthful, non-misleading names and availability information.
- Do not post another person's phone number, address, live location, identity document, financial information or private conversation without lawful authority.
- Do not manipulate ratings, create duplicate identities to inflate trust, or retaliate against users who report misconduct.
- Do not pressure another user to move communication outside the platform for the purpose of bypassing safety or reporting controls.
- Near Cash may restrict or remove content or accounts where necessary to protect users, comply with law or prevent abuse.

Report & Abuse Policy

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash provides reporting and blocking mechanisms to help users identify and respond to unsafe or unlawful activity.

What to Report

Users should report scams, suspicious financial activity, impersonation, threats, harassment, unsafe meetups, fake listings, privacy violations, credential requests and other policy violations.

Triage

Reports should be reviewed under a documented severity process, in the following order: immediate safety threat; suspected serious criminal or fraudulent activity; account compromise; harassment or privacy violation; and spam or lower-risk policy violation.

Possible Actions

Depending on the evidence and severity, Near Cash may warn, restrict, block, suspend or terminate an account, preserve records or escalate the matter.

Evidence Preservation

Users must not obtain evidence by hacking, unauthorised access or confrontation. Users should preserve relevant in-product identifiers and screenshots where it is safe to do so.

False or Abusive Reporting

Reports made in good faith are welcome. Deliberately fabricated reports intended to harm another user may themselves violate the rules.

Risk-Based Handling

- **Urgent safety:** threats, stalking, extortion, suspected violent crime or immediate physical danger receive priority handling. Users should contact emergency services where immediate intervention is required.
- **Financial abuse:** suspected scams, impersonation, fraudulent payment claims, coercion or suspicious fund-related conduct may result in temporary restrictions while the matter is reviewed.
- **Privacy abuse:** doxxing, publication of private information or unauthorised location sharing may be restricted or removed where appropriate.
- **Evidence:** reports should include dates, usernames, relevant messages and other lawful evidence. Users must not send passwords, OTPs or full payment credentials.
- **Non-retaliation:** good-faith reporting is protected from retaliation. Deliberately false reports may themselves be subject to enforcement.

Grievance & Dispute Policy

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash provides a structured channel for user complaints and policy concerns.

How to Complain

Please use the official support and grievance channel: nearcash.info@gmail.com. Include the relevant account identifier, the approximate date and time, the issue category and any supporting information that can safely be shared.

Acknowledgement and Review

The operator will acknowledge and review complaints within a reasonable operational period and will comply with any legally prescribed grievance timelines that apply to the service. Where the applicable IT Rules require a decision or communication within a specified period, that period will be followed. Each case should have a status, an owner, recorded actions and a closure reason.

Privacy and Safety Complaints

Urgent safety or privacy matters should be prioritised. Reports involving imminent physical danger should be directed to emergency services in parallel.

Legal Requests

Court orders, regulator requests and lawful law-enforcement requests are handled under the internal Lawful Requests Procedure.

Contact Details

Grievance Officer and contact: Sumit Ghosh — nearcash.info@gmail.com.

Business address: Kabiraj Mess, Barbaria Main Road, Barbaria, Barasat, West Bengal 700126, India.

Risk-Reduction Commitments

- Complaints are handled according to severity, safety impact, privacy impact and legal urgency.
- Personal information in a complaint is limited to what is reasonably needed to investigate and respond.
- Where a complaint concerns account restriction or content removal, the operator may explain the applicable rule and the outcome, to the extent lawful and safe.
- Where a matter requires emergency intervention, users should contact the relevant emergency service or law-enforcement authority directly. Near Cash is not an emergency-response service.
- Nothing in this procedure removes any mandatory statutory complaint, consumer or legal remedy available to a user.

Cookie & Analytics Notice

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash should disclose local storage, cookies and analytics in a manner that matches the actual deployed configuration.

Current Client Storage

The current application uses browser storage for selected local product state and for analytics-related identifiers where technically required. Near Cash does not intentionally use advertising trackers or behavioural advertising. Cloudflare services and Near Cash administrative analytics are currently used for infrastructure, security and operational analytics. The configuration must be re-reviewed if additional trackers or advertising technologies are added.

Purpose

Storage may support authentication and session continuity, preferences, product functionality, security and aggregated product analytics.

Third Parties

Any third-party analytics, advertising, maps, SMS or infrastructure provider must be identified in the final privacy and vendor inventory where required.

Choices

Where consent is legally required for a particular tracker or purpose, the operator must provide an appropriate choice mechanism. Dark patterns must not be used, and withdrawal of consent must not be made harder than giving it.

Changes

This notice must be updated whenever tracking technology or purposes materially change.

Risk Controls for Analytics

- Analytics should be limited to product reliability, security and aggregate usage measurement, and must not be configured to build advertising profiles unless this notice is updated first.
- Phone numbers, OTPs, authentication tokens, precise coordinates and message contents must not be placed in analytics event metadata.
- Where a provider processes personal data, the provider must be recorded in the internal vendor inventory and reviewed for security, contractual and legal requirements.
- Any new advertising, tracking, fingerprinting or cross-site profiling technology requires a fresh privacy review, and appropriate disclosures and choices, before activation.

Account & Data Deletion

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Users should have a clear route to request deletion, while Near Cash retains only what it is legally or operationally required to retain.

Deletion Request

Use the authenticated account deletion control where available, or email nearcash.info@gmail.com from the account email or phone context where reasonably possible.

Meaning of Deletion

Account-associated operational data should be deleted or de-identified when no longer required, subject to legal, security, fraud-prevention, dispute and incident-response retention obligations.

Backups and Logs

Some information may remain temporarily in secure backups or legally required logs until the applicable retention period expires.

Safety Records

Reports or abuse records may require limited retention in order to protect users, investigate misconduct or comply with law.

Completion Record

The operator should maintain a minimal internal record showing that the request was processed, without retaining unnecessary personal data.

Risk-Reduction Rules

- Deletion requests are verified to prevent an attacker from deleting another person's account.
- Active safety, fraud, dispute or legal-hold records may be retained where necessary and lawful, with access restricted to authorised purposes.
- Location data should be removed when the user disables matching or location, or requests deletion, subject to lawful retention requirements.
- Deletion must not be used to destroy evidence after a credible safety, fraud or legal issue has been identified.

Intellectual Property & Copyright

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash respects intellectual property rights and expects users to do the same.

Platform Intellectual Property

Near Cash branding, original software, interface design, documentation and original content are protected by applicable intellectual-property law, unless otherwise licensed.

User Content

Users retain the rights they already hold in the content they submit. They grant only the permissions necessary to operate, transmit, moderate and secure the service.

Infringement Reports

Rights holders should submit, through the official legal contact, the work or mark at issue, the basis of ownership, the precise location of the material, their contact information and a good-faith description of the alleged infringement.

No Scraping or Cloning

Automated extraction, reverse engineering, resale or copying of the service is prohibited, except where permitted by law or an applicable licence.

Additional Protection Controls

- Do not upload content that contains another person's confidential or personal information without a lawful basis.
- Reports should identify the protected work or right and provide sufficient information to locate the allegedly infringing material.
- Near Cash may restrict access to disputed content while a rights complaint is under review, subject to applicable law and fair process.
- Nothing in this policy transfers ownership of a user's lawful rights or limits any remedy that cannot legally be waived.

Security & Responsible Disclosure

Effective date: 28 September 2026 • Operator: Near Cash (individual operator: Sumit Ghosh) • Contact: nearcash.info@gmail.com

Near Cash maintains a security reporting process and an internal incident-response procedure.

Responsible disclosure. Please report security vulnerabilities privately. Do not publicly disclose an exploitable issue before the operator has had a reasonable opportunity to investigate and mitigate it.

1. What to Report

Examples include authentication bypass, unauthorised access, data exposure, privilege escalation, injection, session compromise, insecure direct object access, or any security weakness that could materially harm users.

2. What Not to Include

Never send passwords, OTPs, UPI PINs, private keys, payment credentials or unnecessary personal data. Use the minimum evidence needed to reproduce the issue.

3. Safe-Harbour Expectations

Good-faith testing should avoid accessing, modifying, deleting or exfiltrating data belonging to other users, disrupting the service, socially engineering users or staff, or conducting denial-of-service activity. This page is not a promise to waive any legal rights and does not authorise any activity prohibited by law.

4. Reporting Channel

Use the official security contact: nearcash.info@gmail.com. If an in-app security or report function is available, it may be used for user-facing reports.

5. Incident Response

Confirmed incidents are handled under the internal Incident Response Plan. Where applicable, the operator will comply with CERT-In directions and other legal reporting requirements.

Additional Security Controls

- Do not disclose secrets, authentication codes, private keys, session tokens or exploit details in a public report.
- Security reports are triaged according to impact and exploitability. Critical issues may require temporary feature restrictions or emergency mitigation.
- Security logs and incident records are access-controlled and retained in accordance with the internal retention schedule and applicable legal requirements.
- Material incidents are assessed for any mandatory notification or reporting obligations before public disclosure.
- Researchers should avoid accessing, copying or modifying user data beyond what is strictly necessary to demonstrate a vulnerability.

Near Cash — Internal Compliance Documentation Pack

Status: PRE-LAUNCH CONTROL DOCUMENTS • Jurisdiction focus: India • Version: 1.1 • Owner: Near Cash (individual operator: Sumit Ghosh)

Purpose

This pack operationalises the public policies. It is not a legal opinion and must be reviewed against the final entity, product, vendors, data flows and applicable law.

Core Rule

Near Cash must remain non-custodial unless the business first obtains a fresh legal and regulatory assessment before introducing any feature that holds, routes, settles, converts or otherwise processes participant funds.

Documents

- 01-data-inventory-and-record-of-processing.md
- 02-data-retention-schedule.md
- 03-incident-response-plan.md
- 04-abuse-and-moderation-sop.md
- 05-lawful-requests-procedure.md
- 06-admin-access-control-policy.md
- 07-vendor-and-processor-due-diligence.md
- 08-business-continuity-and-recovery.md
- 09-legal-compliance-matrix.md
- 10-launch-gate-checklist.md
- 11-policy-change-log.md
- 12-current-operator-profile.md
- 13-legal-sources-and-review-basis.md

Mandatory Owner Fields Before Launch

The following must be completed before launch: legal entity name; registered address; privacy and grievance contact; security contact; CERT-In point of contact, where required; data-protection role and contact, where required; hosting, SMS, analytics and map vendors; retention periods; applicable age threshold; governing law and jurisdiction; and escalation contacts.

Prohibited Shortcut

The product must not be described as "legally compliant", "regulator approved", "RBI approved", "AML cleared" or "lawyer approved" unless the relevant fact is actually documented.

Risk-Reduction Standard

Every control must be implemented, testable, owned and reviewable. A policy statement without a corresponding product or operational control is not treated as a completed control. Near Cash must not be described as legally certified, risk-free, or compliant with every law.

Mandatory Risk Gates

1. No custody, transfer, settlement or processing of participant funds without a fresh regulatory assessment.

2. No launch with DEV_OTP or test credentials enabled.
3. No analytics payload containing OTPs, session tokens, phone numbers, message bodies or precise coordinates.
4. No public display of precise user coordinates or home addresses.
5. Every report must be attributable to an account and reviewable by an authorised operator.
6. Serious safety, fraud or security events require preservation and escalation in accordance with the incident and lawful-request procedures.
7. Every new vendor must pass the vendor and data-flow review before production use.
8. Every material product change requires a privacy, safety and regulatory-impact review.

Data Inventory & Record of Processing

Data class	Examples in current build	Purpose	Access	Retention owner
Account	User ID, display name, phone	Authentication and account management	Backend and admin, as necessary	Data owner
Location	Latitude and longitude, area	Nearby matching	Matching service; precision to be minimised	Data owner
Listings	Type, amount, expiry, area	Matching	Matched participants and backend	Product owner
Communications	Thread and message text	Coordination and safety	Participants; authorised moderation only where necessary	Trust & Safety
Reports	Reporter, subject, thread, reason	Abuse response	Trust & Safety and admin	Trust & Safety
Blocks	Blocking and target user IDs	User safety	Backend	Trust & Safety
Ratings	Stars and tag	Reputation	Relevant users and admin	Product owner
Authentication	Session hashes, OTP hashes and expiry	Account security	Backend only	Security owner
Security logs	Route, status, request ID, diagnostics	Security and operations	Security and admin	Security owner
Analytics	Pseudonymous client ID and events	Product reliability	Analytics and admin	Product owner

Controls

1. Collect only data necessary for the stated purpose.
2. Do not expose precise location to other users unless a separately reviewed feature requires it.
3. Do not store plaintext OTPs, passwords or transaction PINs.
4. Do not place secrets in source control.
5. Do not use analytics data to infer sensitive attributes.
6. Maintain a vendor list and a data-flow diagram.
7. Review this record after any material product or vendor change.

Current Provider Note

Cloudflare is used for the Worker, D1 database and infrastructure, together with other Cloudflare services. A conditional Twilio SMS and OTP integration is present in the application code and must be treated as an external processor or service provider if enabled in production.

Risk-Reduction Requirements

- Record each data field, its source, purpose, access role, retention period and deletion mechanism.
- Treat precise location as sensitive operational data requiring strict access control and minimisation.
- Do not place authentication secrets or precise location in analytics metadata.
- Reconcile this inventory against the production schema after every material release.
- Record Cloudflare and any enabled SMS or OTP provider as relevant service providers or processors where they process personal data.

Data Retention Schedule

This schedule is a control baseline and not a substitute for legal advice. Exact periods must be finalised after counsel has reviewed the applicable statutory obligations and the final architecture.

Record	Baseline	Disposal trigger
Expired or open listings	Delete or de-identify promptly after operational need ceases	Expiry plus an operational grace period
Sessions	Expire automatically	Session expiry
OTP records	Short-lived	OTP expiry or failed-attempt lock
Messages	Only as necessary for service, safety and disputes	End of purpose plus approved retention
Reports and abuse cases	Retain while needed for safety, investigation and legal claims	Case closure plus approved retention
Security and operational logs	Maintain in accordance with applicable CERT-In and legal requirements	After the required period
Backups	Rolling and access-controlled	Backup lifecycle
Account deletion records	Minimal completion evidence	Approved retention
Legal holds	Preserve	Written release of hold

Rules

- A legal hold overrides ordinary deletion.
- Security incident evidence must not be deleted during an active investigation.
- Deletion must be logged without retaining unnecessary personal data.
- Retention must be reviewed at least annually, and whenever law or architecture changes.

Risk-Reduction Requirements

Retention must have a documented purpose. The shortest practical period should be preferred, subject to security, fraud, dispute, legal-hold and applicable statutory requirements. Deletion jobs and manual deletion requests must be testable. Location history must not be retained merely because it is technically convenient.

Security & Personal-Data Incident Response Plan

Severity

- **P0:** imminent safety risk, active account compromise, major data exposure or material cyberattack.
- **P1:** confirmed security incident or significant abuse affecting multiple users.
- **P2:** contained security weakness or limited exposure.
- **P3:** low-risk vulnerability or operational issue.

Immediate Steps

1. Create an incident ID and assign an incident owner.
2. Contain the threat without destroying evidence.
3. Preserve relevant logs and timestamps.
4. Determine the affected systems, data and users.
5. Rotate exposed secrets and credentials where necessary.
6. Record decisions and actions.
7. Escalate to the legal and privacy lead.
8. Assess CERT-In, DPDP and other notification obligations.
9. Notify affected users and authorities when legally required.
10. Complete a root-cause analysis and corrective actions.

CERT-In Control

The operator must maintain a current CERT-In point of contact where required, and comply with the applicable CERT-In Directions, including the applicable reporting timelines. The Directions of 28 April 2022 require specified cyber incidents to be reported within 6 hours of noticing them or being brought to notice, and require secure rolling logs to be maintained for 180 days. Applicability and current requirements must be confirmed with counsel or the security lead before launch.

Post-Incident

Conduct a lessons-learned review, update controls, test recovery and record closure approval.

Risk-Reduction Requirements

For every material incident, maintain a single incident owner, an evidence log, a decision timeline and a notification assessment. Immediately contain compromised credentials, sessions or access paths; preserve relevant evidence; assess whether any statutory reporting obligation applies; and document the basis for each decision to disclose or not to disclose.

Trust, Safety & Abuse Moderation SOP

Intake Categories

- Suspected fraud or scam
- Suspected financial crime
- Threats or physical safety
- Harassment or stalking
- Impersonation or fake account
- Privacy or doxxing
- Credential theft or phishing
- Spam or manipulation
- Unlawful content
- Security vulnerability

Triage

- **P0:** immediate safety threat or active compromise — immediate restriction and escalation.
- **P1:** credible fraud or financial crime, or serious abuse — restrict if necessary, preserve evidence and investigate promptly.
- **P2:** harassment, privacy or spam — review and act proportionately.
- **P3:** minor policy issue — warn or educate where appropriate.

Decision Principles

Necessity, proportionality, consistency, evidence preservation, user safety, privacy minimisation and non-retaliation.

Enforcement

Possible actions are: warning, listing removal, messaging restriction, temporary suspension, permanent termination, block, and escalation to legal or law-enforcement authorities where required.

Appeals

Where operationally feasible, a documented review route should be provided for account actions, except where disclosure would create a safety, fraud, legal or investigation risk.

Risk-Reduction Requirements

Prioritise immediate physical safety, credible financial fraud, account takeover, privacy abuse and serious indicators of unlawful use. Use consistent reasons for restriction, preserve only necessary evidence, record the decision-maker, and provide an appeal or review path where appropriate. Avoid irreversible action based solely on unverified allegations, unless necessary for immediate safety.

Lawful Requests & Government/Authority Procedure

Intake

Only authorised personnel should handle requests from courts, regulators, police, CERT-In or other competent authorities.

Verification

Confirm the requester's identity, legal authority, scope, jurisdiction, deadline and the data requested. Reject, or seek clarification of, informal requests where appropriate.

Preservation

Place a documented legal hold where necessary. Preserve relevant records without broad or unnecessary collection.

Disclosure

Disclose only the information reasonably required by a valid legal authority, subject to counsel review where appropriate. Record what was disclosed, to whom, under what authority and when.

User Notice

Do not notify a user where notification is prohibited by law or would create a material investigation or safety risk. Otherwise, follow the applicable notice requirements and counsel's direction.

Emergency

For imminent threats to life or serious physical harm, escalate immediately to the designated legal and safety lead and the relevant authority.

Risk-Reduction Requirements

Verify the authority, scope, jurisdiction and authenticity of every request; disclose only the minimum lawful information; preserve chain-of-custody records; record the legal basis and the approving operator; and avoid voluntary disclosure beyond what is necessary and permitted.

Admin Access Control Policy

1. Least privilege applies by default.
2. Production, development and administrative credentials must be kept separate.
3. Shared admin passwords are prohibited.
4. Strong, unique credentials and multi-factor authentication (MFA) must be used where supported.
5. Admin secrets must be stored only in the approved secret manager.
6. Admin APIs must use server-side authorisation, rate limiting and origin controls where appropriate.
7. Phone numbers, exact locations, messages, OTPs, session tokens and meetup PINs must not be exposed in aggregate analytics.
8. Admin access must be reviewed after role changes and periodically.
9. Privileged actions must be logged where technically feasible.
10. Access must be revoked immediately when no longer needed.
11. Secrets must never be committed to GitHub.
12. Authorisation must be tested server-side and must never rely solely on UI restrictions.

Risk-Reduction Requirements

Use least privilege, unique administrator identities, strong authentication, periodic access reviews and auditable administrative actions. Never share administrator credentials. Remove access promptly when a role ends or no longer requires access.

Vendor & Processor Due Diligence

Before enabling any vendor that receives personal data, the following must be recorded:

- legal name and service;
- categories of data shared;
- processing purpose;
- hosting and data locations;
- security controls;
- breach-notification commitments;
- subcontractors and sub-processors;
- retention and deletion controls;
- access controls;
- contract and data processing agreement (DPA) terms, where appropriate;
- cross-border transfer implications; and
- exit and deletion procedure.

Current Deployment Categories

The following categories were identified from the code and configuration: Cloudflare Workers, D1 and infrastructure, together with other Cloudflare services; Near Cash administrative analytics; and a conditional Twilio SMS and OTP integration, which applies when the relevant production secrets are configured. No advertising provider is intentionally used. The integrations actually enabled in production must be verified, and the applicable contractual and privacy terms recorded, before launch.

Risk-Reduction Requirements

Before enabling a provider, document what data leaves Near Cash, why it leaves, where it is processed, the security controls, the contractual terms, the retention and deletion options, and the incident-notification arrangements. The service must not be described as having "no third-party processors" where a production provider technically processes personal data.

Business Continuity & Recovery

Critical Services

Authentication; matching and listings; messaging; reports and blocks; admin controls; and database availability.

Controls

- Maintain tested database backups where supported.
- Document restoration steps.
- Keep deployment configuration and infrastructure versioned.
- Maintain emergency contacts.
- Test restore procedures periodically.
- Maintain a rollback path for defective releases.
- Keep incident evidence separate from ordinary deletion.
- Review recovery arrangements after major architecture changes.

Recovery Priority

1. User safety and account security.
2. Containment of abuse or compromise.
3. Restoration of authentication and core matching.
4. Restoration of non-critical analytics.
5. Completion of the incident review.

Risk-Reduction Requirements

Recovery plans must protect user data from accidental exposure as well as from downtime. Test backups, restore procedures, credential rotation and the emergency disablement of risky features. Maintain a rollback path for releases affecting authentication, location, reporting or matching.

Legal & Regulatory Applicability Matrix — India

Area	Framework	Near Cash control	Status
Personal data	DPDP Act 2023 / Rules 2025	Privacy notice, minimisation, rights, security, retention	Counsel validation required
Online intermediary obligations	IT Act 2000 / IT Rules 2021, if applicable	Terms, privacy and user rules; reporting, grievance and abuse process	Applicability assessment required
Consumer and e-commerce	Consumer Protection Act 2019 / E-Commerce Rules 2020, if applicable	Transparent disclosures, grievance and fair practices	Scope assessment required
Cyber incidents	IT Act s.70B / CERT-In Directions	Incident response, logs, point of contact and reporting	Operationalise before launch
Contract	Indian contract principles / applicable law	Terms, user consent and change control	Counsel validation
Criminal misuse	Applicable criminal laws	Prohibited-use rules, abuse triage and lawful requests	Ongoing
Intellectual property	Copyright, Trade Marks and other IP laws	IP policy and takedown process	Ongoing
Tax	Applicable tax laws	Accounting and filings after incorporation or revenue	CA validation
Payments and financial regulation	RBI and payment laws, only if relevant activities arise	Strict non-custodial boundary	Re-review before any fund handling

This table must not be interpreted as a complete inventory of every Indian law. It is a product-specific control map and must be refreshed for the final business model.

Risk-Reduction Interpretation

The matrix is an applicability and control map. It is not legal advice or a complete statement of Indian law. For each applicable framework, record the exact obligation, technical control, owner, evidence, review date and counsel status. Reassess whenever the platform changes payment handling, data categories, user age, geographic scope, content functions or corporate structure.

Near Cash — Compliance Launch Gate

The product must not be marked READY until every applicable item has an owner and evidence.

Entity & Governance

- ☐ Legal entity and operator name finalised
- ☐ Registered or business address finalised
- ☐ Official privacy, grievance and security contacts live
- ☐ Age and eligibility rule finalised
- ☐ Counsel review completed and documented

Public Documentation

- ☐ Privacy Policy matches actual data flows
- ☐ Terms match the actual non-custodial architecture
- ☐ Acceptable Use Policy published
- ☐ Safety and Meetup Policy published
- ☐ Community Guidelines published
- ☐ Report and abuse process live
- ☐ Grievance process live
- ☐ Cookie and Analytics Notice matches actual trackers
- ☐ Account deletion process works
- ☐ Security disclosure channel works
- ☐ security.txt updated with real contact

Technical Controls

- ☐ No plaintext OTP, PIN or password storage
- ☐ Admin secrets are held as secrets, not in source code
- ☐ Server-side authorisation tested
- ☐ Rate limits tested
- ☐ Location precision and minimisation tested
- ☐ Logs do not unnecessarily expose sensitive data
- ☐ Backups and recovery tested
- ☐ Abuse, report and block flows tested
- ☐ Production security headers tested
- ☐ Dependency and security scan completed

Regulatory Operations

- ☐ CERT-In point of contact assessed or designated where required
- ☐ Incident reporting process tested
- ☐ Retention schedule approved
- ☐ Vendor and processor inventory completed
- ☐ Lawful-request process assigned to an owner
- ☐ Data-subject request process tested

- ☐ Consumer and e-commerce applicability assessed
- ☐ Financial-regulatory boundary assessed and documented

Product Boundary

- ☐ Near Cash does not custody funds
- ☐ Near Cash does not settle or transfer participant funds
- ☐ No claims of RBI approval or financial licence
- ☐ Any new money-handling feature triggers legal re-review

Additional Hard Launch Gates

- ☐ Production authentication cannot operate in development or test OTP mode.
- ☐ Exact location is never rendered to another user.
- ☐ Location deletion works and is tested.
- ☐ Reports, blocks and enforcement actions are operational.
- ☐ Privacy, Terms, Acceptable Use and Safety pages are reachable from the app.
- ☐ Vendor inventory matches actual production providers.
- ☐ Incident-response contact and evidence process are tested.
- ☐ No claim of legal certification or compliance is used in marketing.
- ☐ Any material legal uncertainty is escalated for Indian counsel review before launch.

Policy Change Log

Version	Date	Change	Reason	Owner	Legal review
1.0	2026-09-28	Initial integrated compliance pack	Product hardening	[OWNER]	Pending

Change-Control Rule

Any material change to payments, custody, location precision, identity verification, advertising, monetisation, user-generated content, international users, children, financial products or data vendors triggers a policy and legal applicability review before release.

Risk Review Trigger

A change is "material" if it affects payments, custody, settlement, location precision or history, identity verification, minors, advertising or tracking, user-generated content, international users, automated decision-making, new vendors, or the legal entity. Material changes require a documented privacy, safety and regulatory review before release.

Current Operator Profile

Effective date: 28 September 2026

Item	Detail
Operating name	Near Cash
Operator	Sumit Ghosh
Business structure	Individual
Country	India
State	West Bengal
Business address	Kabiraj Mess, Barbaria Main Road, Barbaria, Barasat, West Bengal 700126, India
CIN	N/A (not incorporated)
GSTIN	N/A (not registered or provided)
Website	https://nearcash.site
Legal, privacy, support, grievance, abuse and security email	nearcash.info@gmail.com
Account creation	Yes
Login	Phone
Precise GPS	Collected when permission is granted, for matching
Approximate location shown to other users	Yes
Location history retained	No
Analytics	Cloudflare and Near Cash administrative analytics
Advertising and behavioural tracking	No
Funds custody or processing	No
Intended minimum age	18+
Governing state stated in policies	West Bengal, India

This profile is an operational record. It is not a representation that the operator is an incorporated company, or that any regulator has approved the service. It must be updated when the legal entity, product architecture, data flows, vendors, contact details or transaction model changes.